

**Return of Allotment of Shares**Company Name: **ACTIUM HOLDINGS LIMITED**Company Number: **09965297**Received for filing in Electronic Format on the: **24/09/2024**

XDCB4CH6

Shares Allotted (including bonus shares)

Date or period during which shares are allotted	From	To
	09/09/2024	

Class of Shares:	REDEEMABLE	Number allotted	52232400
	PREFERENCE	Nominal value of each share	0.01
Currency:	EUR	Amount paid:	1
		Amount unpaid:	0

No shares allotted other than for cash

Statement of Capital (Share Capital)

Class of Shares:	ORDINARY	Number allotted	123939670
Currency:	GBP	Aggregate nominal value:	92954.7525

Prescribed particulars

GENERAL: THE ORDINARY SHARES HAVE ATTACHED TO THEM FULL VOTING, DIVIDEND AND CAPITAL DISTRIBUTION (INCLUDING WINDING UP) RIGHTS. RETURN OF CAPITAL: ON AN EXIT OR RETURN OF CAPITAL TO THE SHAREHOLDERS (EXCEPT ON A REDEMPTION OR PURCHASE BY THE COMPANY OF ANY SHARES), THE SURPLUS ASSETS OF THE COMPANY REMAINING AFTER THE PAYMENT OF ITS LIABILITIES (INCLUDING, FOR THE AVOIDANCE OF DOUBT, ANY DEBTS ARISING FROM NON-PAYMENT OF THE PREFERENCE DIVIDEND), SHALL BE APPORTIONED BETWEEN THE HOLDERS OF SECURITIES IN THE FOLLOWING MANNER: (II) FIRST, TO THE HOLDERS OF THE REDEEMABLE PREFERENCE SHARES, AN AMOUNT EQUAL TO: (I) 100% OF THE ISSUE PRICE OF THE PREFERENCE SHARES HELD BY EACH RELEVANT HOLDER RESPECTIVELY; AND (II) THE AGGREGATE AMOUNT OF ANY ACCRUALS AND/OR UNPAID AMOUNTS OF PREFERENCE DIVIDEND ATTRIBUTABLE TO EACH SUCH PREFERENCE SHARE, IN RESPECT OF WHICH EACH SUCH PREFERENCE SHARE SHALL RANK PARI PASSU; AND (III) SECOND, THE BALANCE OF SUCH ASSETS (IF ANY) AFTER ALL PAYMENTS TO BE MADE IN PRIORITY SHALL BE DISTRIBUTED AMONGST THE HOLDERS OF THE ORDINARY SHARES ACCORDING TO THE NUMBER OF SUCH ORDINARY SHARES HELD BY THE RELEVANT ORDINARY SHAREHOLDER AT THE RELEVANT TIME.

Class of Shares:	REDEEMABLE	Number allotted	52232400
	PREFERENCE	Aggregate nominal value:	522324
Currency:	EUR		

Prescribed particulars

VOTING: THE PREFERENCE SHARES DO NOT ENTITLE THE HOLDER TO VOTE (OTHER THAN IN RESPECT OF A VARIATION OF THE CLASS RIGHTS OF THE PREFERENCE SHARES). PREFERENCE DIVIDEND: THE COMPANY SHALL, WITHOUT RESOLUTION OF THE BOARD OR OF THE SHAREHOLDERS AND BEFORE APPLICATION OF ANY PROFITS TO RESERVE OR FOR ANY OTHER PURPOSE, ACCRUE IN RESPECT OF EACH PREFERENCE SHARE A FIXED CUMULATIVE PREFERENTIAL DIVIDEND AT THE ANNUAL RATE OF 5.25% (SUBJECT TO THE MARGIN RATCHET APPLICABLE TO FACILITY B UNDER AND AS DEFINED IN A SENIOR FACILITIES AGREEMENT BETWEEN, AMONG OTHERS ACTIUM BIDCO (UK) LIMITED (THE PARENT OF THE COMPANY) AND CERTAIN OTHER MEMBERS OF THE COMPANY GROUP PLUS EURIBOR OF THE ISSUE PRICE PER PREFERENCE SHARE ACCRUING AND COMPOUNDING IN LINE WITH THE RELEVANT INTEREST PERIODS SELECTED AND/OR THE ACCRUAL AND COMPOUNDING OF INTEREST UNDER SUCH SENIOR FACILITIES AGREEMENT. THE PREFERENCE DIVIDEND SHALL BE PAID ON THE DATE OF REDEMPTION OF THE RELEVANT SHARES. THE PREFERENCE DIVIDEND SHALL, PROVIDED THE COMPANY HAS SUFFICIENT AVAILABLE PROFITS OUT OF WHICH TO PAY THE SAME AND NOTWITHSTANDING THAT SUCH DIVIDEND IS EXPRESSED TO BE CUMULATIVE, AUTOMATICALLY BECOME A DEBT DUE FROM AND IMMEDIATELY PAYABLE BY THE COMPANY ON THE REDEMPTION DATE. REDEMPTION: THE PREFERENCE SHARES SHALL BE REDEEMED UPON CERTAIN EVENTS, INCLUDING WITH THE PRIOR WRITTEN CONSENT OF THE HOLDERS OF THE PREFERENCE SHARES, OR IN ANY EVENT ON THE DATE FALLING 84 MONTHS FOLLOWING THE CLOSING DATE OF THE SENIOR FACILITIES AGREEMENT. THE HOLDERS OF PREFERENCE SHARES MAY ALSO, AT ANY TIME, REQUIRE THE COMPANY TO REDEEM THE PREFERENCE SHARES, BY SERVING ON IT A NOTICE TO REDEEM SUCH AMOUNT OF PREFERENCE SHARES. IF THE COMPANY IS UNABLE, BECAUSE OF HAVING INSUFFICIENT AVAILABLE PROFITS OR OTHERWISE RESTRICTED UNDER THE ARTICLES, TO REDEEM ALL OF THE PREFERENCE SHARES ON THE DATE FIXED FOR REDEMPTION, THE COMPANY SHALL REDEEM AS MANY OF SUCH PREFERENCE SHARES AS CAN LAWFULLY AND PROPERLY BE REDEEMED RETURN OF CAPITAL: ON AN EXIT OR RETURN OF CAPITAL TO THE SHAREHOLDERS (EXCEPT ON A REDEMPTION OR PURCHASE BY THE COMPANY OF ANY SHARES), THE SURPLUS ASSETS OF THE COMPANY REMAINING AFTER THE PAYMENT OF ITS LIABILITIES (INCLUDING, FOR THE AVOIDANCE OF DOUBT, ANY DEBTS ARISING FROM NON-PAYMENT OF THE PREFERENCE DIVIDEND), SHALL BE APPORTIONED BETWEEN THE HOLDERS OF SECURITIES IN THE FOLLOWING MANNER: (I) FIRST, TO THE HOLDERS OF THE REDEEMABLE PREFERENCE SHARES, AN AMOUNT EQUAL TO: (I) 100% OF THE ISSUE PRICE OF THE PREFERENCE SHARES HELD BY EACH RELEVANT HOLDER RESPECTIVELY; AND (II) THE AGGREGATE

AMOUNT OF ANY ACCRUALS AND/OR UNPAID AMOUNTS OF PREFERENCE DIVIDEND ATTRIBUTABLE TO EACH SUCH PREFERENCE SHARE, IN RESPECT OF WHICH EACH SUCH PREFERENCE SHARE SHALL RANK PARI PASSU; AND (I) SECOND, THE BALANCE OF SUCH ASSETS (IF ANY) AFTER ALL PAYMENTS TO BE MADE IN PRIORITY SHALL BE DISTRIBUTED AMONGST THE HOLDERS OF THE ORDINARY SHARES ACCORDING TO THE NUMBER OF SUCH ORDINARY SHARES HELD BY THE RELEVANT ORDINARY SHAREHOLDER AT THE RELEVANT TIME.

Statement of Capital (Totals)

Currency:	GBP	Total number of shares:	123939670
		Total aggregate nominal value:	92954.7525
		Total aggregate amount unpaid:	0
Currency:	EUR	Total number of shares:	52232400
		Total aggregate nominal value:	522324
		Total aggregate amount unpaid:	0

Authorisation

Authenticated

This form was authorised by one of the following:

Director, Secretary, Person Authorised, Administrator, Administrative Receiver, Receiver, Receiver Manager, CIC Manager.